

1 STATE OF OKLAHOMA

2 1st Session of the 60th Legislature (2025)

3 HOUSE BILL 1488

By: Johns

6 AS INTRODUCED

7 An Act relating to schools; amending 70 O.S. 2021,
8 Section 3-104.4, which relates to accreditation
9 standards; adding deficiencies to standards;
10 clarifying terms; permitting school districts to
11 request a hearing on accreditation recommendations;
12 providing hearing notice requirements; providing
13 request timeline; directing the State Department of
14 Education to promulgate rules; providing an effective
15 date; and declaring an emergency.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-104.4, is
16 amended to read as follows:

17 Section 3-104.4. A. The State Board of Education shall adopt
18 standards for the accreditation of the public schools in this state
19 according to the requirements of Section 3-104.3 et seq. of this
20 title, to be effective as set forth in Section 3-104.3 et seq. of
21 this title. The accreditation standards shall incorporate the
22 curricular standards established pursuant to Section 11-103.6 of
23 this title. The accreditation standards shall equal or exceed
24 nationally recognized accreditation standards to the extent that the

standards are consistent with an academic results oriented approach to accreditation. The accreditation adopted by the State Board shall encompass accreditation for elementary schools, middle schools, junior high schools, and high schools. The accreditation standards shall be made available for public inspection at the offices of the State Department of Education.

B. Standards for accreditation adopted by the State Board of Education shall include standards relating to the provision of school counselors to the public school children of this state. The State Board of Education shall require each local school district to provide information regarding the number of counselors serving each school site, the duties of all such counselors including all administrative duties, the number of students served by each counselor, and information regarding the number of counselors employed per elementary school, middle school, junior high school and high school.

C. 1. Except as otherwise provided, schools shall meet the accreditation standards as a condition of continued accreditation. Nothing herein shall be construed as preventing changes to the adopted standards by the State Board of Education pursuant to the Administrative Procedures Act.

2. The accreditation standards shall provide for deficiencies, warnings, probation or nonaccredited status for schools that fail to meet one or more of the standards.

1 3. The ~~Department~~ State Department of Education shall
2 investigate a complaint of failure to provide educational services
3 or failure to comply with accreditation standards within thirty (30)
4 days of receiving the complaint. If the ~~Department~~ State Department
5 of Education determines that a school has failed to comply with the
6 accreditation standards, the Department shall report the recommended
7 deficiency, warning, probation or nonaccredited accreditation status
8 to the State Board of Education within ninety (90) days. Before the
9 State Board of Education may implement any recommendations from the
10 State Department of Education as described in this paragraph, the
11 school district shall be given an opportunity to request a hearing
12 before the State Board of Education pursuant to the due process
13 procedures adopted by the Board as provided for in this subsection.
14 The State Board of Education shall send the applicable school
15 district notice of a right to a hearing within ten (10) working days
16 of receiving the recommendations. The hearing shall be conducted by
17 the State Board of Education. All notices shall be sent by
18 certified mail, with the postmark used to determine the timeliness
19 of the notice. If the school district fails to request a hearing
20 within ten (10) working days of receipt of such notice, the
21 district's right to a hearing shall be waived.

22 4. If a school district does not request a due process hearing
23 within ten (10) working days' notice from the Board, and the school
24 or school district does not take action to comply with the

1 accreditation standards within ninety (90) days after a report is
2 filed by the Department, the Board shall withdraw accreditation for
3 the school.

4 5. The State Board of Education shall promulgate rules
5 regarding notice and hearing of accreditation status pursuant to
6 this section and in accordance with the Administrative Procedures
7 Act.

8 6. The State Board of Education accreditation ~~regulations~~ rules
9 shall provide for warnings and for assistance to schools and school
10 districts whenever there is reason to believe a school is in danger
11 of losing its state accreditation.

12 D. If one or more school sites fail to receive accreditation as
13 required pursuant to this section or subsequently lose
14 accreditation, the State Board of Education shall close the school
15 and reassign the students to accredited schools within the district
16 or shall annex the district to one or more other districts in which
17 the students can be educated in accredited schools.

18 E. Standards for accreditation adopted by the State Board of
19 Education shall include standards relating to the provision of
20 educational services provided in partial hospitalization programs,
21 day treatment programs, day hospital programs, residential treatment
22 programs and emergency shelter programs for persons between the ages
23 of three (3) and twenty-one (21) years of age. The accreditation
24 standards shall apply to on-site and off-site educational services

1 provided by public school districts or state-accredited private
2 schools. Each school which is providing or is required to provide
3 educational services for students placed in a program as described
4 in this subsection shall be actively monitored by the State
5 Department of Education. The Department shall determine on an
6 ongoing basis if the educational program and services are in
7 compliance with the accreditation standards.

8 F. The State Board shall provide assistance to districts in
9 considering the possibility of meeting accreditation requirements
10 through the use of nontraditional means of instruction. The State
11 Board shall also assist districts in forming cooperatives and making
12 arrangements for the use of satellite instruction or other
13 instructional technologies to the extent that use of such
14 instructional means meets accreditation standards.

15 G. 1. Accreditation shall not be withdrawn from or denied nor
16 shall a penalty be assessed against a school or school district for
17 failing to meet the media materials and equipment standards, media
18 program expenditure standards and media personnel standards as set
19 forth in the accreditation standards adopted by the Board.

20 2. The provisions of paragraph 1 of this subsection shall cease
21 to be effective during the fiscal year which begins on the July 1
22 immediately succeeding the legislative session during which the
23 measure appropriating monies to the State Board of Education for the
24 financial support of public schools is enacted as law and such

1 appropriation amount is at least Fifty Million Dollars
2 (\$50,000,000.00) greater than the amount of money appropriated to
3 the State Board of Education for the financial support of public
4 schools for the fiscal year ending June 30, 2019, pursuant to
5 Chapter 146, O.S.L. 2018. Provided, the Fifty Million Dollars
6 (\$50,000,000.00) shall not include any amount of appropriations
7 dedicated for support or certified employee salary increases.
8 Accreditation shall not be withdrawn from or denied nor shall a
9 penalty be assessed against a school or school district for failing
10 to meet the media personnel standards as set forth in accreditation
11 standards adopted by the Board.

12 H. 1. The State Board shall not assess a financial penalty
13 against any school district which is given a deficiency in
14 accreditation status during any fiscal year as provided for in this
15 subsection.

16 2. Beginning with the fiscal year which begins July 1, 2021, if
17 the amount of money appropriated to the State Board of Education for
18 the financial support of public schools including funds apportioned
19 pursuant to ~~Section 2 of this act~~ Section 426 of Title 63 of the
20 Oklahoma Statutes, is at least One Hundred Million Dollars
21 (\$100,000,000.00) greater than the amount of money appropriated to
22 the State Board of Education for the financial support of public
23 schools for the fiscal year ending June 30, 2019, pursuant to
24 Chapter 146, O.S.L. 2018, a financial penalty shall be assessed

1 against any school districts that do not comply with the class size
2 limitations for kindergarten as provided for in Section 18-113.2 of
3 this title and class size limitations for grade one as provided for
4 in subsection A of Section 18-113.1 of this title. Provided, the
5 One Hundred Million Dollars (\$100,000,000.00) shall not include any
6 amount of appropriations dedicated for support or certified employee
7 salary increases.

8 3. The State Department of Education shall submit a report on
9 statewide classroom sizes to the President Pro Tempore of the
10 Oklahoma State Senate and the Speaker of the Oklahoma House of
11 Representatives no later than January 1, 2022.

12 I. Except as provided for in subsection J of this section,
13 beginning with the 2019-2020 school year, evaluations of schools to
14 determine whether they meet the accreditation standards set forth in
15 accordance with this section shall occur once every four (4) years
16 on a schedule adopted by the State Board of Education. The Board
17 may interrupt the evaluation schedule provided in this subsection
18 for reasons including a change in the superintendent of the school
19 district; determination that one or more school district board
20 members have not met the continuing education requirements as
21 defined by this title; determination that the school district
22 falsified information submitted to any public city, county, state or
23 federal official or agency; initiation of an investigation by the
24 Board or a law enforcement agency; or other determination by the

1 Board that standards for accreditation are not being met by the
2 school district. The schedule adopted by the Board shall allow for
3 school districts receiving no deficiencies for two (2) consecutive
4 years to be reviewed for accreditation less than annually.

5 Provided, however, that schools shall be evaluated annually for the
6 purposes of:

- 7 1. Local, state and federal funding;
- 8 2. Health and safety;
- 9 3. Certification requirements for teachers, principals and
10 superintendents;
- 11 4. School board governance, including instructional and
12 continuing education requirements for school board members; and
- 13 5. Any other requirements under state or federal law.

14 J. Beginning with the 2019-2020 school year, if a public school
15 receives a deficiency on its accreditation report, the public school
16 shall be evaluated annually to determine if it meets the
17 accreditation standards set forth in accordance with this section.

18 If the public school receives no deficiencies for two (2)
19 consecutive years, the public school shall be subject to the
20 evaluation timeline established in subsection I of this section.

21 SECTION 2. This act shall become effective July 1, 2025.

22 SECTION 3. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
24

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3

4 60-1-11275 SW 01/03/25

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24